

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12 (Hon. Nahal Iravani-Sani)

Hon. Jose S. Franco, Presiding

Courtroom Clerk, Ryan Nguyen

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2230

DATE: 7/10/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 2	23CV423174	Ari Law, P.C. vs. Katalyst Development, LLC et al	Hearing on Motion for an Order Applying Property to Satisfy Judgment (CCP 708.205) The Plaintiff's motion was filed on January 12, 2026, and was accompanied by two declarations in support of the motion and proof of service. Defendants' opposition was filed on June 26, 2026, and accompanied by a declaration in opposition of the motion. A reply was filed by Plaintiff on July 2, 2026. On June 26, 2026, Defendants filed objections to one of the declarations filed in support of Plaintiff's motion. Plaintiff filed their response to the evidentiary objections on July 2, 2026, along with their objections to the declaration filed in support of Defendants' opposition to the motion. Defendant's objections to paragraphs 4,6,7,8,11,13, and 15 of Ali Mousavi's declaration are OVERRULED. Plaintiff's six objections to Walid Mando's declaration are OVERRULED. The Court has carefully reviewed the moving papers, including the declarations and attachments filed related to this motion, and has taken note of the procedural history as noted in the filings by both parties. Although the perfecting of an appeal generally stays proceedings and enforcement in the trial court under Code of Civil Procedure section 916 this general rule does not apply to money judgments. Specifically, Code of Civil Procedure section 917.1 dictates that the perfecting of an appeal does not stay the enforcement of a judgment or order for money or the payment of money unless an undertaking is given. Because the \$276,924.65 judgment issued on December 10, 2024 in this case is a money judgment (encompassing breach of contract and unpaid attorney fees) and the Defendants have not requested a stay of enforcement or provided a showing of or a sufficient undertaking, the judgment remains fully enforceable pending an appeal. To obtain a stay of enforcement for a money judgment, the appellant must provide a sufficient undertaking or bond. During judgment debtor examination proceedings, which are designed to discover and apply assets to satisfy a money judgment, the court is authorized to issue turnover and satisfaction orders. Under Code of Civil Procedure section 708.205, at the conclusion of an order for examination proceeding, the court may order the judgment debtor's interest in property in the possession or under the control of the judgment debtor (or a third
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			person) to be applied toward the satisfaction of the money judgment, provided the property is not exempt from enforcement. Accordingly, Plaintiff's motion is GRANTED. Plaintiff is to prepare the order for filing. Any payment made is to be made directly to Judgment Creditor, Plaintiff Ari Law, P.C., and shall not exceed the amount necessary to satisfy the judgment and any accrued post-judgment interest and enforcement costs.
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LINE 3	24CV428712	Belen Ibanez vs Javier Ibanez et al	Hearing on Motion to Deem Requests for Admissions, Set One, Admitted and Monetary Sanctions Defendant filed this motion on March 2, 2026 relative to the initial Request for Admissions, Set One served on Plaintiff on October 7, 2025 and due on November 10, 2025, and was followed by an extension of the due date to November 24, 2025 and when no response was provided a meet and confer letter on December 10, 2025 requesting verified responses without objection. Plaintiff's opposition was filed on June 9, 2026, indicating that a response to the Request for Admissions, Set One was served on April 20, 2026 and arguing that the motion is moot. Defendant filed a Reply on July 1, 2026 acknowledging the belated compliance and arguing a disregard and misuse of the discovery process that necessitated the filing of this motion. The Court has carefully reviewed the moving papers, including the declarations of counsel and attachments in all three filings related to this motion, and has taken note of the procedural history as noted in the filings by both parties. Defendant's motion for Request for Admissions, Set One is DENIED as moot. No evidence being presented by Plaintiff of a substantial justification or circumstances making the imposition of the sanctions unjust (for a 90-day delay) and necessitating the filing of this motion by Defendant, the Request for Sanctions pursuant to Code of Civil Procedure sections 2023.280 and 2023.030 is GRANTED. The Court orders Sanctions in the amount of \$595 (the filing fee of \$60, one hour of paralegal work at a rate of \$175/hour, and \$360 for .6 hours of work at the attorney rate of \$600/hour) to be paid within 20 days of the filing of this order. Moving party (Defendant) to prepare the order.
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